

The Orissa State Board for Wildlife Rules, 2008

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Rule THE-ORISSA-STATE-BOARD-FOR-WILDLIFE-RULES-2008 of 2008

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The Orissa State Board for Wildlife Rules, 2008

Published vide Notification No. 14709-8F(WL)-10/2006 (part)-F.&E., dated 1st September 2008, O.G. No. 37, dated 12.9.2008

Forest & Environment Department

No. 14709-8F(WL)-10/2006 (part)-F.&E. dated 1st September 2008. - In exercise of the powers conferred by Sub-sections (2) and (3) of Section 6, read with Section 64 of the Wildlife (Protection) Act, 1972 (53 of 72), the State Government hereby makes the following rules, namely

1.

Short title and commencement.

(1)

These rules may be called the Orissa State Board for Wildlife Rules, 2008.

(2)
They shall come into force on the date of their publication in the official gazette of the State.

2.

Definitions.

(1)
In these rules, unless the context otherwise requires

(a)
"Act" means the Wildlife (Protection) Act, 1972 (53 of 1972).

(b)
"State Board" means the Orissa State Board for Wildlife constituted under Section 6 of the Act;

(c)
"Chairperson" means the Chairperson of the State Board;

(2)
All other words and expressions used in these rules but not defined shall have the same meanings as respectively assigned to them in the Act.

3.

State Board for Wildlife.

(1)
The State Board shall be constituted in accordance with the provisions contained in Section 6 of the Act.

(2)
The terms of office of the members other than those who are members ex officio shall be for a period of three years.

(3)
The Members of Legislative Assembly nominated by the state Government to the State Board shall cease to be the Member of the State Board on his having ceased to be the Member of State Legislature.

(4)
The vacancies referred to in clause (d) and (e) of Sub-section (1) of Section 6 of the Act shall filled by nomination by the State Government with the approval of Chairperson, taking into consideration the interest and activism shown by the nominee in the cause of conservation of Nature and preservation of wildlife.

(5)
Notwithstanding anything contained in any other law for the time being in force, the office of a member of the State Board shall not deemed to be an office of profit.

4.

Meeting.

(1)
The State Board shall ordinarily meet twice in a year at such place as the State Government may direct.

(2)
The Board shall regulate its own procedure (including the quorum).

(3)
No act or proceeding of the Board shall be invalid merely by reason of the existence of any vacancy therein or any defect in the constitution thereof or any irregularity in the procedure of the Board affecting the merits of the case.

(4)
The Member-Secretary shall prepare agenda items for the meetings, obtain approval of the Chairperson and circulate it to all members at least fifteen days prior to the date of such meeting.

(5)
The Member-Secretary shall prepare the minutes of the meeting and circulate it to all members within thirty days of the meeting after obtaining approval of the Chairperson.

(6)
The Member-Secretary shall also initiate follow up action on the decisions of the State Board.

5.

Removal from the State Board.

- The State Government may, with the prior approval of the Chairperson, remove any member of the State Board

appointed under Clauses (d) and (e)) of Sub-section (1) of Section 6 of the Act if

(a)

he is of unsound mind and stands so declared by a competent Court; or

(b)

he is an un-discharged insolvent; or

(c)

he is convicted of any offence including moral turpitude; or

(d)

his conduct is found to be unbecoming of a member.

6.

Disclosure of interest by members.

- If any member of the State Board or his family members has any interest in a proposal submitted for consideration of the State Board the member shall disclose the extent of interest in the proposal.

7.

Presiding over the meetings of the State Board.

(1)

The Chairperson or in his absence the Vice-Chairman shall preside every meeting of the State Board.

(2)

In the absence of both the Chairperson and the Vice-Chairperson, such other member present as is decided by the State Board shall preside over the meeting.

8.

Quorum.

(1)

The quorum necessary for the transaction of business at a meeting of the State Board shall be one half of the total number of members.

(2)

If at any time there is no quorum, the Chairperson or the person presiding over a meeting shall adjourn the meeting until there is quorum.

9.

Invitees to the State Board meeting.

- The Chairperson of the State Board may invite any person or persons having experience in wild life conservation to attend any meeting of the State Board.

10.

Record of business.

(1)

The record of business transaction at every meeting of the State Board shall be prepared by the Member-Secretary with approval by the Chairperson or the Member presiding at such meeting.

(2)

When any business is transacted by circulation of papers, the Member-Secretary shall prepare a record of the business so transacted for approval by the Chairperson of the State Board permitting the circulation.

(3)

The record of business transacted at every meeting of the State Board shall be approved and signed by the Chairperson or the Vice-Chairperson or the member presiding at such meeting and the approved record of business shall be circulated to all the members.

(4)

All records shall be maintained by the Member-Secretary in relation of items of business transacted by the State Board or the Committee, Sub-Committee or sub-group thereof.

11.

Travelling and other allowances to members of the State Board and its Committees.

(1)

A member of the State Board, except members ex-officio shall be entitled to receive in respect of any journey performed

by him for the purpose of attending meeting of the State Board or of a duly constituted committee thereof or for the purpose of discharging any duty assigned to him by the State Board or the committee concerned, travelling allowances and daily allowances at the rate as are admissible to Group 'A' officers of the State Government for the time being in force.

(2)

No travelling allowance or daily allowance shall be allowed to a member of the State Board unless he certifies that he has not drawn any travelling or daily allowance from any other source in respect of the journey and halt for which the claim is made,

(3)

The travelling allowance shall be payable from the usual place of residence of a member of the State Board to the place of the meeting or the place where he has gone to attend to any business of the State Board and back to his place of residence.

(4)

In special circumstances, the Chairperson may grant travelling allowance from the places other than usual place of residence of a member.

12.

Interpretation of Rules.

- Where any doubt arises as to the interpretation of these rules, the same shall be referred to the State Government for its decision.

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